

Chandrabhan Gupta v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 29 August 2017 · WRIT - C No. - 39041 of 2017 · **Writ disposed; Executive Engineer to decide billing representation within six weeks.**

HEADNOTE

A writ raising a billing dispute over electricity consumption charges was disposed of by relegating the consumer to the Executive Engineer. The Court accepted that such a dispute is to be decided under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and that if any amount is found due, easy instalments may be sought under Clause 6.14. Respondent no. 4 was directed to dispose of the pending representation/application within six weeks of receiving a certified copy of the order.

FACTUAL SUMMARY

Chandrabhan Gupta petitioned the Allahabad High Court over a dispute on electricity consumption charges. Counsel for the Electricity Department submitted that the dispute could be raised before and decided by the concerned Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and that if any amount were found payable the petitioner could seek easy instalments under Clause 6.14. Paragraph 12 of the writ petition recorded that the petitioner had already approached respondent no. 4 for that purpose.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-executive-engineer

HOLDING

A writ petition raising a billing dispute on electricity consumption charges is disposed of by relegating the consumer to the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The pending representation/application is to be decided within six weeks of receipt of a certified copy of the order. If the consumer is found liable to pay, easy instalments may be sought from the Executive Engineer under Clause 6.14. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ raising a billing dispute over electricity consumption charges was disposed of by relegating the consumer to the Executive Engineer. The Court accepted that such a dispute is to be decided under Clause 6.5 of the U.P.. ¶ 1

installment-payment-clause-6.14 A writ raising a billing dispute over electricity consumption charges was disposed of by relegating the consumer to the Executive Engineer. The Court accepted that such a dispute is to be decided under Clause 6.5 of the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND ENTITLEMENT TO INSTALMENTS

The Court did not examine the bill on merits or whether instalments under Clause 6.14 should be granted; those questions were left to the Executive Engineer. ¶ 1